

TENTATIVE RULINGS for LAW and MOTION

April 14, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Melendres v. Franklin et al.
Case No. CV2024-1563

Hearing Date: April 14, 2026 **Department Eleven** **9:00 a.m.**

Defendant Benjamin's Transfer, Inc.'s motion to compel multiple physical examinations is **GRANTED**. (Code Civ. Proc., §§ 2032.020, 2032.220, and 2032.310.) The Court finds that defendant has shown good cause for the additional physical examinations requested. (Code Civ. Proc., §§ 2032.310, 2032.320, subd. (a); *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840; *Shapira v. Superior Court* (1990) 224 Cal.App.3d 1249, 1254-1255; Blackstone Decl., ¶¶ 2-10, Exhibits A-H.) The Court further finds that the additional physical examinations requested by defendant are not cumulative or duplicative. (Code Civ. Proc., §§ 2032.020, subd. (a), 2019.030, subd. (a)(1); Opp., pp. 8-9.)

Pursuant to plaintiff Javier Melendres' request: (1) a representative of plaintiff may accompany him to the examinations and may audio record the examinations; and (2) defense counsel shall provide plaintiff's counsel with: (a) a detailed report setting out the history, examinations, and findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examiner; and (b) a copy of reports of all earlier record reviews or examinations of the same condition of plaintiff by the examiner or any other physician retained by defendant. (Code Civ. Proc., §§ 2032.510, 2032.610; Opp., p. 10.) No other limitations on the examinations requested by plaintiff are permitted. (Opp., p. 10.)

Parties are **DIRECTED TO MEET AND CONFER** to determine a new date and time for plaintiff's physical examination with Dr. D. Michael Hembd. (Code Civ. Proc., § 2032.320, subd. (d).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Muller v. Dish Network L.L.C.**
Case No. CV2025-3759

Hearing Date: **April 14, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Peterson v. City of Red Bluff et al.**
Case No. CV2025-1674

Hearing Date: **April 14, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant Cody Strock's motion for attorneys' fees is
CONTINUED to May 26, 2026, at 9:00 a.m. in Department Fourteen.